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Case Number: 24NWCV03358 Hearing Date: July 16, 2026 Dept: L

Defendants Maria S. Rodriguez

and Galo P. Rodriguez's Demurrer to the fourth cause of action in the FAC is
SUSTAINED without leave to amend.

Defendants' Motion to Strike

is GRANTED without leave to amend, in part, and DENIED, in part.

Defendants to give notice.

Background

This is a personal injury action
regarding an alleged battery that occurred on September 26, 2022 . On September
24, 2024, Plaintiff Brian Botelho ("Plaintiff") filed this action against
Defendants Chris Hammond, Maria S. Rodriguez and Galo P. Rodriguez, as
individuals and as Trustees of the Rodriguez Family Trust, and Does 1 to 10.

On February 13, 2026, Plaintiff
filed the First Amended Complaint (FAC). The FAC alleges that Defendant Chris
Hammond and Plaintiffs were neighbors. The parties were engaged in a
conversation regarding building a wall between their properties when Defendant
Hammond punched Plaintiff in the face ("Incident").

The FAC alleges that, four months
after the alleged Incident, Defendant Hammond transferred real property located
at 13042 Premier Avenue Downey, CA 90242 ("Subject Property") to Defendants Maria
S. Rodriguez and Galo P. Rodriguez, as individuals and as Trustees of the
Rodriguez Family Trust (hereinafter, "Rodriguez Defendants"). (FAC, ¶ 19, Exh.

A.) The Subject Property consisted of the only asset Defendant Hammond owned that could have been liened to satisfy any monetary damages related to the Incident. Thus, the FAC alleges that Defendants “fraudulently and unlawfully agreed and conspired together to conceal the true ownership of the real property with intent to defraud creditors of [Defendant Hammond], and especially plaintiff [...]” (FAC, ¶ 24.)

The FAC further alleges that, in the case it is determined that the Subject Property is owned by Rodriguez Defendants, they were the landlord of Defendant Hammond. The FAC alleges that Rodriguez Defendants should have known of Defendant Hammon's “violent temperament and disposition” and “they should never have allowed him to rent and/or occupy” the Subject Property. (FAC, ¶ 31.) In doing so, they were negligent.

The FAC alleges the following causes of action:

1. Battery
(against Defendant Hammond)
2. Negligence
(against Defendant Hammond)
3. Fraudulent
Transfer (against all Defendants)
4. Negligent
(against Rodriguez Defendants)

Rodriguez Defendants now demur to the fourth cause of action. Defendant also move to strike portions of third cause of action.

Evidentiary Objections

Plaintiff's Objection to the Declaration of Galo P. Rodriguez is sustained as improper extrinsic evidence that cannot be considered on Demurrer.

Requests for Judicial Notice

Rodriguez Defendants' Request for

Judicial Notice of the following documents are granted, as officially recorded documents:

- Exhibit

A – Trust Transfer Deed, signed and dated on December 10, 2020, recorded on January 15, 2021, granting title of the Subject Property to Defendant Hammond.

- Exhibit

B – Trust Transfer Deed, signed and dated on December 9, 2022, recorded on December 28, 2022, granting title of the Subject Property to Rodriguez Defendants.

Legal Standard

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (“Donabedian”) (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil Procedure section 430.41, subdivision (a) and section 435.5 require that the parties meet and confer “in person, by telephone, or by video conference.”

The parties were unable to meet and confer within the required time period, so Defense counsel filed a declaration for automatic extension on April 6, 2026. (Murdock Decl., ¶ 4.) On April 7, 2026, the parties met and conferred regarding the issues in the instant Demurrer and Motion to Strike. (Murdock Decl., ¶ 5.)

Although Defense counsel does not specify the means by which the parties met and conferred, the Court will nevertheless address the merits of the Demurrer and Motion to Strike in the interests of judicial efficiency.

Discussion

Rodriguez Defendants now demur to the fourth cause of action for negligence.

In order to state a claim for negligence, Plaintiff must allege the elements of (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in an injury.” (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Firstly, the FAC alleges that Rodriguez Defendants owed a duty to Plaintiff based on their alleged ownership of the Subject Property where the Incident occurred. However, Defendants did not own the Subject Property at the time of the Incident. Defendant Hammond owned the Subject Property at the time of the Incident, on September 26, 2022, after being granted the Property on December 10, 2020. (See RJN, Exh. A.) Defendants obtained the Subject Property on December 9, 2022. (See RJN, Exh. B.) The third cause of action and Exhibit A in the FAC admit that Defendant Hammond owned the Subject Property at the time of the Incident.

Further, the FAC alleges no specific facts that Rodriguez Defendants had actual or constructive knowledge of any violent propensity on the part of Defendant Hammond prior to the Incident—i.e., foreseeability.

In opposition, Plaintiff argues that FAC adequately alleges all elements of negligence. Plaintiff asserts that the FAC may plead alternative theories. The FAC alleges fraudulent transfer under the Uniform Fraudulent Transactions Act (UFTA) in the third cause of action. The Court may find, in later proceedings, that the transfer was dated December 10, 2020, and recorded on January 15, 2021, purporting to transfer the Subject Property from Rodriguez Defendants to Defendant Hammond and his wife, (RJN, Exh. A) is invalid as a fraudulent transfer. If that transfer deed is declared invalid, then it would be shown that Defendants owned the Subject Property on the date of the Incident.

Thus, the FAC sufficiently alleges Rodriguez Defendants owned a duty to Plaintiff based on their ownership of the Subject Property. (See FAC, ¶ 31.) The FAC further alleges that Defendants breached their duty by allowing Defendant Hammond to rent the Subject Property where they knew or should have known of his violent temperament. (Ibid.) The FAC adequately alleges causation, alleging that Defendants' decision to rent the Subject Property to Defendant Hammond brought him into contact with Plaintiff. (Ibid.) Plaintiff was damaged as a result. (Ibid.)

In reply, Rodriguez Defendants argue that the opposition relies on speculation regarding possible ruling of the Court, not specific allegations regarding Defendants' ownership. Defendants argue that the fraudulent transfer cause of action focuses on the later December 9, 2022 transfer from the Hammonds to Defendants. (See FAC, ¶¶ 20, 22-24.) The fraudulent transfer cause of action alleges that this transfer occurred after Plaintiff's claim arose and was made to hinder Plaintiff's ability to collect against Defendant Hammond. (See FAC, ¶¶ 21-26.) Thus, the FAC does not plead any facts that the January 15, 2021 transfer deed, transferring the Subject Property from Defendants to the Hammonds, was void or ineffective.

The negligence cause of action is based on the following allegation: "Assuming that the court were to determine that the residence located at 13042 Premier Avenue Downey, CA 90242, were owned by the RODRIGUEZ defendants, was not owned by defendants CHRIS and MONICA on date of injury, then they were the land lord [sic] of defendant CHRIS." (FAC, ¶ 31.)

The Court agrees with Rodriguez

Defendants. The third cause of action is based on the alleged fraudulent transfer from Defendant Hammond to Defendants, dated December 9, 2022. (See FAC, ¶¶ 20-26.) The December 9, 2022 transfer is the only exhibit attached to the FAC. (See Exh. A.) There is no mention of earlier transfer from Defendants to Defendant Hammond. Therefore, there is no basis on which the Court could hypothetically rule the transfer from Defendants to Defendant Hammond is void, and that Defendants owned the Subject Property on the date of the Incident. The Court finds that the FAC fails to allege any duty owned by Defendants to Plaintiff.

Further, the Court finds that the FAC's allegations showing breach and causation are conclusory. Even if it is accepted that Defendants rented to Defendant Hammond, the fact that they "brought [Defendant Hammond] into contact with Plaintiff" (FAC, ¶ 31) is insufficient to establish proximate causation. There are no specific allegations showing that Rodriguez Defendants knew or should have known of Defendant Hammond's propensity for violence.

The Court is not persuaded that Plaintiff can amend the FAC to correct such deficiency.

Accordingly, the Demurrer to the fourth cause of action is SUSTAINED without leave to amend.

Motion to Strike

Code of Civil Procedure, section 436 permits trial courts to strike out any irrelevant, false, or improper matter inserted in a pleading:

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court."

(Code Civ. Proc., § 436.)

Rodriguez Defendants seek to
strike the following portions of the third cause of action:

-

All references to Civil Code section 3439.4
(a)(2);

-

All references to Civil Code section 3439.07,
subd. (a)(1);

-

All references to Civil Code section 1227; and

-

The phrase “and for Constructive Trust.”

Constructive Trust

“A constructive trust is an
involuntary equitable trust created by operation of law as a remedy to compel
the transfer of property from the person wrongfully holding it to the rightful
owner. [Citations.] The essence of the theory of constructive trust is to
prevent unjust enrichment and to prevent a person from taking advantage of his
or her own wrongdoing. [Citations.] [¶] ... [A] constructive trust may only be
imposed where the following three conditions are satisfied: (1) the existence
of a res (property or some interest in property); (2) the right of a
complaining party to that res; and (3) some wrongful acquisition or detention
of the res by another party who is not entitled to it. [Citations.]” (Communist
Party v. 522 Valencia, Inc. (1995) 35 Cal.App.4th 980, 990-991.)

Rodriguez Defendants argue
that the statement “and for Constructive Trust” is vague and is based on no
statutory authority. The FAC only alleges the common law elements of a
constructive trust. (FAC, ¶ 28.) However, the FAC fails to allege “what
Plaintiff is asking for, when a Constructive Trust would be appropriate, or
what facts Plaintiff intends to use to get a Constructive Trust.” (Mot.,
6:24-25.)

In opposition, Plaintiff

argues that the only statute authorizing constructive trust as a remedy for fraudulent transfer is Civil Code section 2224 ["One who gains a thing by fraud, accident, mistake, undue influence, the violation of a trust, or other wrongful act, is, unless he or she has some other and better right thereto, an involuntary trustee of the thing gained, for the benefit of the person who would otherwise have had it.]. Plaintiff argues that there is no legal authority requiring a plaintiff to the specific statute or caselaw in the complaint.

The FAC alleges the
following in conjunction with the third cause of action:

"Based

on the wrongful acts complained above, [Plaintiff] seeks for a remedy of a constructive trust. [Plaintiff] has a right to the res, in that he has a potential judgment lien claim against the property to satisfy any damages related to the assault by [Defendant Hammond]. The RODRIGUEZ defendants wrongfully obtained title and ownership to the real property as herein alleged. The RODRIGUEZ defendants would be unjustly enriched at Plaintiff's expense. Equity compels the property to be restored to [Defendant Hammond] because the RODRIGUEZ defendants or any Successor Trustee of the Rodriguez Family Trust, dated January 10, 2024, are not justly entitled to own the property."

(FAC, ¶ 28.)

The Court finds that the
third cause of action's inclusion of a request for constructive trust as an equitable remedy is not so unclear that Rodriguez Defendants cannot ascertain whether what is being alleged against them.

Accordingly, the Motion to
Strike as to this portion is DENIED.

Civil Code section 1227

Civil Code section 1227 states
the following: "Every instrument, other than a will, affecting an estate in real property, including every charge upon real property, or upon its rents or

profits, made with intent to defraud prior or subsequent purchasers thereof, or incumbrancers thereon, is void as against every purchaser or incumbrancer, for value, of the same property, or the rents or profits thereof." (Civ. Code, § 1227.)

Rodriguez Defendants argue Civil

Code section 1227 only applies to "prior or subsequent purchasers." This time, Plaintiff is neither a prior nor subsequent purchaser for value. Thus, he cannot invoke such statute.

In opposition,

Plaintiff argues that the Civil Code section 1227 claim is offered as an alternative theory of fraudulent transfer. There is no conflict with the UVTA. Plaintiff argues that the statute "applies to any deed holder who is indebted to another, whether there is a judgment lien or not." (Opp., 3:20-21.)

"A judgment

plaintiff has a mere general lien upon the real property of the judgment defendant. Such lien is an encumbrance, but the original judgment plaintiff is not ordinarily an encumbrancer for a valuable consideration. . . The phrase 'encumbrancers in good faith and for a valuable consideration,' means persons who have taken or purchased a lien, or perhaps merely the means of obtaining one, and who have parted with something of value in consideration thereof. The payment of the money, or the parting with something of value, is essential." (Fulkerson v. Stiles (1909) 156 Cal. 703, 705–706.)

The Court finds

that there are no allegations that Plaintiff is a purchaser or encumbrancer for value. At most, Plaintiff has a potential judgment lien claim against Defendant Hammond. Thus, the Court finds that Civil Code section 1227 does not apply.

Accordingly,

Motion to Strike is GRANTED without leave to amend as to this portion.

Civil Code section 3439.4

Civil Code section 3439.4

states the following:

"(a) A

transfer made or obligation incurred by a debtor is voidable as to a creditor, whether the creditor's claim arose before or after the transfer was made or the obligation was incurred, if the debtor made the transfer or incurred the obligation as follows:

(1) With

actual intent to hinder, delay, or defraud any creditor of the debtor.

(2) Without

receiving a reasonably equivalent value in exchange for the transfer or obligation, and the debtor either:

(A) Was

engaged or was about to engage in a business or a transaction for which the remaining assets of the debtor were unreasonably small in relation to the business or transaction.

(B) Intended

to incur, or believed or reasonably should have believed that the debtor would incur, debts beyond the debtor's ability to pay as they became due."

(Civ. Code, § 3439.04, subd.

(a), emphasis added.)

Rodriguez Defendant argue

that the FAC fails to allege facts sufficient to establish that Defendant Hammond "[i]ntended to incur, or believed or reasonably should have believed that the debtor would incur, debts beyond the debtor's ability to pay as they became due." (Civ. Code, § 3439.04, subd. (a)(2)(B).) Specifically, the FAC fails to allege Defendant Hammond's financial status was such that he reasonably should have believed his debts would exceed his ability to pay debts arising from this action—i.e., that this suit would result in his insolvency.

In opposition, Plaintiff

argues that the FAC sufficiently alleges Defendant Hammond's financial condition. The FAC alleges that Plaintiff believes "there would be equity in the real property to satisfy monetary claims concerning the assault cause of action," and the Subject Property "would have been the only asset [Defendant Hammond]

would have owned that could have been liened to satisfy any monetary damages related to the assault count alleged in the First Cause of Action of this complaint.” (FAC, ¶ 20.) It can be assumed that Defendant Hammond is insolvent where he transferred his only asset to Rodriguez Defendants. Further, there is no requirement that Plaintiff must state specific allegations of Defendant Hammond's insolvency in the FAC.

The Court agrees with Plaintiff. It can be inferred from the FAC that Defendant Hammond, in concert with Rodriguez Defendants, transferred the Subject Property without receiving consideration and with the intention to evade debts he believed he would incur as a result of this action.

Accordingly, the Motion to Strike is DENIED as to this portion.

Civil Code section 3439.07

Civil Code section 3439.07

lists the available remedies for UVTA claims. Civil Code section 3439.07, subdivision (a)(1), cited in the FAC, states that a creditor may obtain “Avoidance of the transfer or obligation to the extent necessary to satisfy the creditor's claim.” (Civ. Code, § 3439.07, subd. (a)(1).)

Rodriguez Defendants argue that, since Plaintiff's Civil Code section 3439.04 and Civil Code section 1227 claims fail, the reference to Civil Code section 3439.07 should be stricken.

Because the Court has found that the Plaintiff's Civil Code section 3439.04 adequately states a claim, the reference to Civil Code section 3439.07 regarding remedies is also viable.

Accordingly, the Motion to Strike is DENIED as to this portion.